

TENTATIVE RULING(S) FOR June 22, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2313931

TORRES v. HONDA

TENTATIVE RULING(S):

On January 12, 2026, Plaintiff filed a Memorandum of Costs seeking costs of \$1,739.92. Before the Court is Defendant Honda's motion to strike or tax Plaintiff's costs. The issue has been fully briefed.

Analysis

Honda argues that Plaintiff's entire Memorandum of Costs should be stricken because Plaintiff did not include any receipts or other evidence in support of the Memorandum of Costs. Honda seeks to tax the following individual costs: (1) \$837.42 in motion filing fees because Plaintiff did not provide receipts and \$72.00 is included in the amount for remote appearance fees that are not recoverable; (2) the \$150.00 jury fees posted by Plaintiff because no trial

occurred; and (3) \$722.50 in deposition costs because Plaintiff did not provide receipts or invoices showing the costs were incurred.

In opposition, Plaintiff argues that there is no requirement that copies of bills or invoices accompany a Memorandum of Costs. Such documentation is only required if the costs are put at issue by a motion to tax. (*Jones v. Dumrichob, supra*, 63 Cal.App.4th at p. 1266.) Plaintiff is correct on the law and Honda's request to *strike the entirety* of Plaintiff's memorandum is denied. Plaintiff further argues that all costs claimed were necessary to the litigation and provides a declaration with invoices showing the amounts of the fees and costs incurred. Plaintiff argues that Honda has failed to meet its burden to show that any of the fees or costs are unreasonable or unnecessary.

On reply, Honda argues that Plaintiff does not establish that the \$72.00 paid to remotely appear at a hearing is recoverable as a filing or motion fee. Further, Honda argues for the first time a \$65.00 priority filing fee should be taxed because Plaintiff did not establish the reasonableness of the cost. Finally, Honda asserts that the \$150.00 jury fee paid by Plaintiff should be taxed because the fees were not used for food and lodging of the jury under Code of Civil Procedure section 1033.5, subdivision (2) and because the is refundable from the Court because the trial did not occur.

Based on the above, the Court tax \$150.00 Plaintiff paid in jury fees. As Honda correctly asserts, the jury fees paid by Plaintiff were refundable under Code of Civil Procedure section 631.3, subdivision (a), upon settlement of the litigation. As such, the fees are not reasonable or necessarily given that the matter did not proceed to trial and Plaintiff was able to recover the fees.

As to the remaining fees, if a buyer prevails on a Beverly-Song claim he is entitled to recover costs and expenses. (Civ. Code, § 1794, subd. (d).) "Expenses" under the statute allow a buyer to recover items not recoverable under Code of Civil Procedure section 1033.5's definition of costs. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42.) Nonetheless, the recoverable cost or expense must be reasonably incurred in connection with the commencement or prosecution of the action. (Civ. Code, §1794, subd. (d); *Jensen v. BMW*

of North America, Inc. (1995) 35 Cal.App.4th 112, 138.) Plaintiffs' remote appearance fee and priority filing fee were incurred in the prosecution of this action and Honda has not shown that they were unreasonable or unnecessary.

Thus, the Court grants Honda's motion to tax costs in the amount of \$150.00 reflecting the refundable jury fees paid by Plaintiffs.

RULING

For all the reasons stated above, the Court Grants Defendant American Honda Motor Company, Inc.'s motion to tax costs in part and denied in part. The Court tax \$150.00 from Plaintiff's Memorandum of Costs.